NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
(COURT- V)

C.P. (CAA)-84/ND/2022

CONNECTED WITH

C.A.(CAA)28/ND/2022

IN THE MATTER OF SCHEME OF AMALGAMATION:

ABHISAR BUILDWELL PRIVATE LIMITED

.....Petitioner No. 1/Transferor Company

WITH

DHARMPAL SATYAPAL LIMITED

..... Petitioner No. 2/Transferee Company

Order Delivered on: 29.08.2022

Section: 230 to 232 of the Companies Act, 2013

CORAM

MR. P.S.N PRASAD, HON'BLE MEMBER (JUDICIAL)

MR. RAHUL BHATNAGAR, MEMBER (TECHNICAL)

PRESENT

For the Applicant: Kaustubh Prakash and Satvik Issar, Advocates
For the Respondent: Ms. Hemlata Rawat, Advocate for OL

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ORDER

AS PER RAHUL BHATNAGAR, MEMBER (JUDICIAL)

This Company Petition jointly filed by the Petitioner Companies is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter, referred to as the **"SCHEME"**) contemplated between the Applicants, which will take effect from the Appointed Date of 01.04.2021.

2. As per the averments, the Registered offices of the Petitioner Company No. 1 and 2 are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case records, it is seen that the First Motion seeking directions for convening/dispensing the meeting of Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A.(CAA)-28/ND/2022 under Sections 230-232 of the Companies Act, 2013 and vide order dated 11.05.2022, directions were issued by this Tribunal to convene a meeting of Unsecured Creditors of the Petitioner Company No. 2 through video conferencing/other audio-visual means. This Tribunal further dispensed with the requirement of the meeting of Equity Shareholders and Unsecured Creditors of

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Petitioner Company No. 1 and also dispensed with the requirement of the meeting of Equity Shareholders and Secured Creditors of Petitioner Company No. 2. Further, since there was no secured creditor in the Petitioner Company No. 1, accordingly, the requirement of convening and holding the meeting of secured creditors of the Petitioner Company No. 1 did not arise.

4. In compliance, individual notices were sent and newspaper publications dated 24.05.2022 were made and the meeting was convened on 25.06.2022 wherein the Scheme was approved by the Unsecured Creditors of the Petitioner Company No. 2 with requisite majority. Further, Chairperson's Report and the Scrutinizer's Report dated 05.07.2022 was filed with this Tribunal.

5. The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 8 and Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:

(i) **The Petition stands Admitted**.

(ii) **The date of hearing** of the Petition filed by the Applicant Companies for approval of the Scheme **is fixed for 20.10.2022.**

(iii) **Notice of the hearing shall be published in the newspapers** namely, "Financial Express" in English

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and "Jansatta" in Hindi (Delhi edition) in not less than 10 days before the aforesaid date fixed for hearing.

6. In addition to the publication of the above Public Notice, the Petitioner Companies shall individually serve the notices of this Petition to the following Authorities, namely:

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(c) Official Liquidator, Delhi,

(d) Central Board of Indirect taxes & Customs, Department of Revenue, Ministry of Finance, Government of India at North Block, New Delhi,

(e) The Jurisdictional Income Tax Authorities,

(f) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

7. That the Petitoner Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

8. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Petitioner Companies, failing which it will be considered by this Tribunal that there is no objection to approval

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of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

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(RAHUL BHATNAGAR)
Member (T)

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(P.S.N. PRASAD)
Member (J)